

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate



Too Little, Too Late: Flock Admits Their Technology Needs Reforms

Image by EFF (CC-by)

Flock Safety, the embattled vendor of mass surveillance technology, has rolled out a handful of new reforms intended to appease the justified nationwide anger that has seen [scores of towns cancel or suspend](#) their contracts with the company for [automated license plate readers](#) (ALPRs). The reforms are a combination of long overdue changes along with some cosmetic fixes that fail to address the fundamental dangers of this technology.

So, what do these reforms actually do?

The most consequential is Flock's default setting of an optional 7-day retention period for ALPR data, down from its original default optional 30-day retention

We should not be letting companies decide how much privacy we deserve.

period. This means if police want to retain data beyond the duration of their retention setting, they need to access “Evidence Mode,” i.e., when the desired data is associated with an active investigation and not just a fishing expedition. This is significant because, in at least some circumstances, Flock has [previously charged](#) its customers to extend their retention period. So, while towns can likely easily flip the switch to longer retention periods, it might come with a price tag some cities will be unwilling to pay.

Flock also has two other, likely easier-to-bypass reforms. The first is offense filtering so that cities can enable other departments to access their ALPR data only if they are investigating certain crimes, e.g., murder or robbery but not immigration-related investigations. The second is supposedly beefing up their audit feature and proactively locking out officers who file suspicious requests for data. The major problem here is the fact that Flock’s enhanced audit and transparency tools help to address a problem that Flock itself has created—an abusable mass surveillance system that tracks all cars all the time.

In addition to these reforms, there is also a tone shift coming from Flock’s CEO, Garrett Langley. Langley went from calling the [DeFlock movement](#) “terrorists” ([which he has since apologized for](#)) and saying that the wave of anti-surveillance anger was [more about the current federal administration than it was specifically about his company](#), to a more conciliatory tone that acknowledges some of the problems of [dangerous surveillance](#), [mission creep](#), and [police abuse](#). Just look at this [report from the BBC](#):

“Historically, my point of view as a chief executive of a private company was, I don't know if I should be making these decisions. I don't know if it's my job to say how long data should be retained,” Langley said.

He added that he has come to agree with groups like the American Civil Liberties Union and the Electronic Frontier Foundation that police should need an active case number to search Flock's data.

“They're right. I think it should be required.”

To be clear, our position has long been that police, at a minimum, need to get a warrant, signed by a judge, in order to search for historic ALPR data regarding specific vehicles. For us, it's common sense: if police want to dip into historic ALPR data like they were going back in time to retroactively follow your comings and goings, they need a warrant.

Fundamentally, these reforms leave us wondering: what is stopping Flock from reversing course on them if their law enforcement customers respond by defecting to another ALPR vendor? Nothing.

This all leads to the bigger and more important issue: We should not be letting companies decide how much privacy we deserve. If our privacy is determined by how much surveillance technology vendors decide is *too much surveillance*, then we're really out of luck. It shouldn't be up to Flock or any other ALPR vendor to decide how long police can collect and retain data on millions, if not hundreds of millions, of innocent people. We need lawmakers to step up and pass laws that restrict police's use of surveillance technology. After all, the surveillance business model is the problem, and a few company-imposed slapdash reforms aren't going to change that.

RELATED CASES:

[SIREN AND CAIR-CA V. SAN JOSE](#)

TAGS:

[FLOCK SAFETY](#)

[AUTOMATED LICENSE PLATE
READERS \(ALPRS\)](#)

Discover more. Join our email list for EFF news, events, campaigns, and ways to support digital freedom.

POSTAL CODE (OPTIONAL)

EMAIL ADDRESS *

SIGN UP NOW

☐ I would like to join EFF's email list for EFF news, events, campaigns, and ways to support digital freedom.

RELATED UPDATES

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY RINDALA ALAJAJI, DAVE MAASS |
SEPTEMBER 14, 2026

The High Crime of “LMAO”: How Cops Are Treating Mass Surveillance As a Joke

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY KAREN GULLO, ADAM SCHWARTZ |
SEPTEMBER 9, 2026

Cops Play Hide and Seek About Using Spy Tech to Avoid Scrutiny and Bad PR

Texas and Florida Step Back from ALPRs

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY RINDALA ALAJAJI, ADAM SCHWARTZ |
SEPTEMBER 2, 2026

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY SARAH HAMID, ADAM SCHWARTZ,
HAYLEY TSUKAYAMA | AUGUST 26, 2026

EFF's Policy Position on ALPR Surveillance: Eliminate It and Reduce Its Harms

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY DAVE MAASS | JUNE 25, 2026

Are Your Local Police Using Flock Safety ALPRs to Scan for Immigrants?

**We're Fighting Mass Surveillance
Tech—and Winning**

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

DEEPLINKS BLOG BY DAVE MAASS, RINDALA ALAJAJI | MAY 26, 2026

More License Plate Reader Mission Creep: School Residency Verification, Background Checks, and Noise Complaints

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

PRESS RELEASE | FEBRUARY 10, 2026

Coalition Urges California to Revoke Permits for Federal License Plate Reader Surveillance

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

EFFecting Change: Get the Flock Out of Our City

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate

ICE Is Going on a Surveillance Shopping Spree

Defend free speech.
Fight surveillance.
Support innovation.
eff.org/donate